U.S. DEPARTMENT OF COMMERCE
DEPARTMENT ADMINISTRATIVE ORDER

Number: DAO 216-26

Effective Date: 2026-06-04

Disclosure Avoidance for Statistical Products

SECTION 1. PURPOSE.

.01 This Order establishes the general policy of the Department of Commerce (Department) with respect to the use of Disclosure Avoidance techniques for statistical products disseminated by the bureaus of the Office of the Under Secretary for Economic Affairs.

.02 This Order issued under the authority of 5 U.S.C. §§301, 302 and 15 U.S.C. §§1511, 1512, 1516.

SECTION 2. SCOPE.

.01 This Order applies to all statistical products disseminated by the Census Bureau and the Bureau of Economic Analysis. Dissemination does not include any data shared among the Census Bureau, the Bureau of Economic Analysis, or the Bureau of Labor Statistics under Title 13, U.S.C., Chapter 10 or 44 U.S.C. §3576. Dissemination also does not include reimbursable products that do not use any data protected by 13 U.S.C §§8 and 9 or 22 U.S.C. §3104(c).

SECTION 3. DEFINITIONS.

.01 For the purpose of this Order, the following definitions apply:

a. Disclosure Avoidance (or Statistical Disclosure Limitation) refers to the efforts made to reduce the risk of disclosing confidential or otherwise protected information about individuals, businesses, or other organizations represented in statistics.

b. Noise Infusion refers to the category of Disclosure Avoidance methods that involve modifying a dataset by adding random values, or noise, to certain entries.

c. Suppression refers to the category of Disclosure Avoidance methods that involve expressly redacting certain values.

d. Coarsening refers to the category of Disclosure Avoidance methods that involve reducing the level of detail or specificity of published statistics, such as through rounding, aggregating (grouping), and/or the use of ranges.

SECTION 4. BACKGROUND.

.01 The Census Bureau and the Bureau of Economic Analysis are statistical agencies within the Department. They are responsible for preparing and publishing numerous statistical products.

.02 Each statistical product disseminated by the Department is governed by some set of legal requirements. Not every statistical product is governed by the same set of legal requirements.

a. 13 U.S.C. §§8 and 9(a) provide for the confidentiality of certain information collected by the Census Bureau, and 22 U.S.C. §3104(c) provides for the confidentiality of certain information collected by the Bureau of Economic Analysis. There are meaningful differences between these statutory provisions, including with respect to the precise level of protection required.

b. Statistical Policy Directive No. 1, codified at 44 U.S.C. §3563, requires each statistical agency, as enabled by the head of the parent agency, to adopt policies, best practices, and appropriate procedures to ensure the confidentiality, accuracy, and objectivity of its statistical activities and to disseminate timely and relevant statistical products.

SECTION 5. POLICY.

.01 Ensuring the Accuracy, Confidentiality, Objectivity, and Relevance of Statistical Products

a. The Department shall, as a primary objective, aim to fulfill its statistical obligations by providing the public with accurate and objective information.

b. The Department is firmly committed to striking a balance of accuracy, confidentiality, objectivity, and relevance for each statistical product that is consistent with its statistical obligations and the applicable legal requirements.

c. Any use of noise infusion is inconsistent with the Department's policies.

.02 The Census Bureau and the Bureau of Economic Analysis shall adhere to the following order of priority when considering and applying Disclosure Avoidance:

a. Coarsening shall be the preferred category of Disclosure Avoidance methods for all statistical products.

b. Suppression shall be permitted as a last resort, only to be used when coarsening is prohibited by law or would substantially defeat the accuracy or usability of a statistical product.

c. Noise infusion shall not be used for any statistical product.

.03 This policy shall not be interpreted to conflict with any constitutional, statutory, regulatory, or other legal provision.

SECTION 6. ASSIGNMENT OF RESPONSIBILITIES.

.01 The Director of the Census Bureau and the Director of the Bureau of Economic Analysis shall each, in conjunction with the Office of the General Counsel:

a. Ensure that they have obtained and/or conducted a full and individualized evaluation of the laws applicable to each particular statistical product prior to dissemination; and

b. Ensure that each statistical product disseminated moving forward is consistent with the policy set forth in Section 5.

SECTION 7. EFFECT ON OTHER ORDERS.

.01 This Order establishes Department Administrative Order 216-26, Disclosure Avoidance for Statistical Products.

.02 This Order supersedes any Department order, policy, or requirement insofar as it is contrary to the provisions of this Order.

Signed by: Secretary of Commerce

Office of Primary Interest: Office of the Under Secretary for Economic Affairs